

TEXAS ADMINISTRATIVE CODE: As in effect on 5/11/2026.

TITLE 16. ECONOMIC REGULATION

PART 4. TEXAS DEPARTMENT OF LICENSING AND REGULATION

CHAPTER 83. BARBERS AND COSMETOLOGISTS

§83.108. Health and Safety Standards--Foot Spas, Foot Basins, and Spa Liners.

(a) As used in this section, "whirlpool foot spa" or "spa" is defined as any basin using circulating water, either in a self-contained unit or in a unit that is connected to other plumbing in the establishment or school.

(b) After use upon each client, each whirlpool foot spa must be cleaned and disinfected in the following sequential manner.

(1) All water must be drained and all debris must be removed from the spa basin.

(2) The spa basin must be cleaned with soap or detergent and water.

(3) The spa basin must be disinfected with an EPA registered disinfectant with demonstrated bactericidal, fungicidal, and virucidal activity which must be used according to the manufacturer's instructions.

(4) The spa basin must be wiped dry with a clean towel.

(c) At the end of each day, each whirlpool foot spa must be cleaned and disinfected in the following sequential manner.

(1) The screen and any other removable parts must be removed, all debris trapped behind the screen must be removed, and the screen and the inlet and any other removable parts must be washed with soap or detergent and water.

(2) Before replacing the screen, one of the following procedures must be performed:

(A) The screen and any other removable parts must be washed with a high level disinfection chlorine bleach solution; or

(B) The screen and any other removable parts must be totally immersed in an EPA-registered disinfectant with demonstrated bactericidal, fungicidal, and

virucidal activity which must be used according to the manufacturer's instructions.

(3) The spa system must be flushed with soap and warm water for at least ten (10) minutes, after which the spa must be rinsed and drained.

(d) Every other week (bi-weekly), after cleaning and disinfecting as provided in this subsection, each whirlpool foot spa must be cleaned and disinfected in the following sequential manner.

(1) The spa basin must be filled completely with a high level disinfection chlorine bleach solution.

(2) The spa system must be flushed for 5 to 10 minutes with the high level disinfection chlorine bleach solution or an EPA-registered disinfectant with demonstrated bactericidal, fungicidal, and virucidal activity which must be used according to the manufacturer's instructions and allowed to sit for 6 to 10 hours.

(3) The spa system must be drained and flushed with water before use upon a client.

(e) For whirlpool foot spas, a record must be made on a department-approved form of the date and time of each cleaning and disinfecting indicating whether the cleaning was a daily or bi-weekly cleaning. This record must be made at or near the time of cleaning and disinfecting and must indicate if a spa was not used during any individual work day.

(f) As used in this section "non-whirlpool foot basin" or "foot basin" is defined as any basin, tub, footbath, sink or bowl that holds non-circulating water. After use upon each client, each non-whirlpool foot basin must be cleaned and disinfected in the following sequential manner.

(1) All water must be drained and all debris must be removed from the foot basin.

(2) The inside surfaces of the foot basin must be scrubbed and cleaned of all visible residues with a clean brush, soap or detergent, and water.

(3) The foot basin must be disinfected with an EPA-registered disinfectant with demonstrated bactericidal, fungicidal and virucidal activity which must be used according to the manufacturer's instructions.

(4) The foot basin must be rinsed, emptied, and wiped dry with a clean towel.

(g) For non-whirlpool foot basins, a record must be made on a department-approved form of the date and time of each cleaning and disinfecting. The record must be

made at or near the time of cleaning and disinfecting and must indicate if the foot basin was not used during any individual work day.

(h) As used in this section "disposable spa liner" or "spa liner" is defined as a plastic liner designed to be placed within a whirlpool foot spa and discarded after a single use and which is equipped with a single "non-adhesive" heat-sealed drain tab which, when pulled, allows water to empty directly into a whirlpool foot spa drain.

(i) As used in this section "portable whirlpool jet" or "jet" is defined as a magnetic or other circulating device, designed to be placed within a whirlpool foot spa basin in order to circulate water in spas in which disposable spa liners are used.

(j) Disposable spa liners and portable whirlpool jets may be used in providing spa services to clients. When used, the following sequential procedures must be performed.

(1) After use upon a client, the heat sealed tab must be pulled allowing the water to empty directly into the establishment's or school's plumbing system.

(2) The spa liner must be discarded in a covered trash receptacle.

(3) The portable whirlpool jet must be completely immersed for 5 to 10 minutes in an EPA-registered disinfectant with demonstrated bactericidal, fungicidal, and virucidal activity which must be used according to the manufacturer's instructions.

(4) The jet must be rinsed with warm water and drained.

(5) All surfaces of the spa basin and foot rest must be wiped with EPA-registered disinfectant wipes.

(k) For disposable spa liners and whirlpool jets, a record must be made on a department-approved form indicating the time and date when the spa liner was used and discarded and when the jet was used and disinfected and must indicate if the jet was not used during a work day.

(l) Cleaning and disinfecting records for foot spas, foot basins, spa liners and jets must be made available upon request by either a client or a department representative and must be retained for inspection for at least 60 days.

(m) A foot spa, foot basin or jet for which documentation is not maintained in accordance with this section must be removed from service and not used again until it has been cleaned and disinfected in accordance with the requirements of this section and the records have been properly updated. When a foot spa, foot basin or jet is removed from service for any reason, the record must indicate the date of removal from service.

(n) Foot spa and foot basin chairs must be cleaned and disinfected after service is provided to each client. The chair must be made of or covered in a non-porous material that can be disinfected.